

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

April 12, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Case. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Valdez and Dr. Rinne, agenda items #15 and 16 were removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #20 was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 22, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on April 5, 2010. Motion (per Consent Agenda) carried.

Ms. Ash moved to approve payment of vouchers as presented, seconded by Ms. Broyles. Mr. Collins and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to the Bicycle Station and Radio Station KYOY respectively) and vacated Council Chambers. Upon inquiry, City Treasurer Barb Dorr, provided information available for vouchers payable to Dex West LLC (\$140.25), advertising in yellow pages for Civic Center and Sanitation Department, and Accent Plumbing and Heating (\$149.90), Depot building restroom repairs, and Cintas Fire Protection (\$323.30), annual inspection of kitchen system, hood, etc. in Depot building. The City Attorney was requested to review the lease agreement regarding City vs. tenant Depot building maintenance responsibilities. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins and Mr. Valdez returned to Council Chambers.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established District to PUD Planned Unit Development District for Lot 1, Original City Block 140, Refinement A, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue)."

Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Ms. Ash moved to amend by substitute, seconded by Dr. Rinne. Upon inquiry, Lisa Pafford, Building and Development office, advised the substitute includes incorporation of previous staff recommendation #1 regarding landscape setbacks, and provides language regarding neighborhood architectural character considerations, size limitation for food service area, additional landscaping and parking requirements, and elimination of freestanding signs. Motion to amend carried. Voting “yes” – all members of the governing body present. Comments followed regarding the planting of replacement trees, pursuant to the original street tree planting system, incorporated into the PUD in an effort to retain the area’s historic tree character. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#3886)

“An Ordinance amending a portion of the City of Cheyenne’s Sanitation Fee Schedule to add monthly recycle dumpster service fees for apartments, multiplex dwellings, trailer courts and optional commercial container service fees.” Upon inquiry by Ed Strader, Dennis Pino, Solid Waste Director, provided information on the proposed fee schedule, which is based upon the number/frequency of pickups. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Upon inquiry, Mr. Pino advised there is currently one container placed at duplexes, clarified business recycling is currently voluntary, and explained that apartments fall under the residential, not commercial, fee category. Motion carried. Voting “yes” – all members of the governing body present. (#3887)

“An Ordinance amending Chapter 5.12, Alcoholic Beverages, Section 5.12.060, Sales and Consumption - Restrictions, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to the David R. Romero South Cheyenne Community Park.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#3888)

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in Sections 12 and 13, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located East of Southwest Drive, South of Interstate 80, West of BNSF Railroad, and North of Woodenshoe Drive).” Kathleen Sheehan, area property owner, requested consideration of a postponement to further research possible removal of Woodenshoe Drive from the proposed annexation property, and to allow her additional time to evaluate potential future monetary liability involving development costs. Providing comments in support of Ms. Sheehan’s request for postponement were Dan Frank, Frank Law Office, attorney representing Ms. Sheehan, who also reviewed boundaries of Ms. Sheehan’s property relative to affiliated potential development costs due to annexation; Gay Woodhouse, attorney representing residents along Southwest Drive, and Leo Garcia. Topics presented included the City’s previous Swan Ranch annexation action currently in litigation, contiguity issues, and prior postponements requested by and approved for the developer of the project. Mike Basom, Dray, Thomson and Dyekman law firm, attorney representing the developer, spoke in opposition to postponement, noting previous postponements requested by the developer were to address concerns expressed by residents in the area. Mr. Basom requested the annexation process be allowed to move forward, and commented that any action on the previous Swan Ranch annexation would be handled through a court decision. Ms. Sheehan indicated her belief that Woodenshoe Drive did not necessarily need to be included in the annexation area. Ms. Woodhouse noted previous postponements approved for the developer, noting a past postponement was for the developer to seek permission from the railroad. Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Upon inquiry regarding what communication or actions had

transpired between the developer and property owners since the last postponement was granted, Brad Emmons, AVI, agent for applicant, clarified they had met with Ms. Sheehan regarding the annexation area and criteria to be designed through the platting process, and indicated until the plat design is completed it is unknown whether Woodenshoe Drive should be included. He stated they have been working with City, County, WYDOT and BOPU staff on various issues. Ms. Sheehan verified she had met with the developer and certain staff involved and still has concerns regarding several planning/development areas that could affect potential development of her property and the financial burden annexation may cause her. Ms. Woodhouse advised she has been meeting with her clients as well as conducting other research during the most recent postponement time frame. Ken Clark, Garrett Properties, developer, advised he started meeting with landowners last summer regarding the proposed annexation and development project to address issues, and spoke in opposition to postponement. Comments followed regarding previously raised concerns with area traffic, drainage, water and sewer, etc., which issues may not be able to be completely addressed until the platting process is started (i.e. after annexation), and cost to the developer to proceed with the platting design process without knowing whether the annexation will be approved. Upon inquiry regarding the inclusion of Woodenshoe Drive in the annexation area, Matt Ashby, Planning Services Director, advised the key to including Woodenshoe Drive involves a long standing policy that has been developed to assist with mitigating development impact on adjacent rights-of-way. He noted if changes were to be made to the annexation map by removing Woodenshoe Drive, “402 criteria” would need to be re-evaluated. Upon inquiry regarding measures taken to resolve Ms. Sheehan’s concerns, Mr. Clark advised he has met with Ms. Sheehan and told her they would work with her and others as the development moves forward during the platting process to seek solutions. Mr. Valdez moved to postpone for one month, seconded by Ms. Broyles. Motion to postpone failed. Voting “yes” – Mr. Valdez. Voting “no” – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Main motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Valdez voting “no”.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from PUD Planned Unit Development District to MR-2 Medium Density Residential-Developing District for Lots 1 through 14 inclusive of Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming, to be known as a portion of Woodhaven Subdivision (located west of College Drive, between the Dry Creek Channel and McCann Avenue)” -- referred to Public Services Committee (sponsor - Ms. Ash).

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential-Established District to MUB Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Original City Block 140, Refinement A, a replat of Lots 1-8, Block 140, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue).” Motion (per Consent Agenda) carried. (#5198)

“A Resolution amending Resolution #4859 due to a shortfall in projected collection of the Optional One Percent Sales Tax for calendar years 2007 through 2010.” Mr. Brown moved to adopt,

seconded by Mr. Valdez. Upon inquiry, Vicki Nemecek, Public Works Dept., provided information on reduced level of funding percentages for certain areas and agencies affected, and clarified the dollar amount proposed to be reduced for economic development. Discussion followed on reduced funding for economic development purposes; funding for the City's LEADS membership, and other available funding to assist with possible infrastructure requirements related to businesses that may be interested in building in Cheyenne. Ms. Nemecek provided information on infrastructure development funding and explained the difference between budget line items for infrastructure development vs. economic development and allowable use of each fund. Concern was voiced with reducing the funding level for economic development. Motion carried. Voting "yes" – all members of the governing body present. (#5199)

"A Resolution authorizing the transfer of funds in the approximate amount of \$400,000.00 from the City's Solid Waste Management Fund to the General Fund." Eric Hardgrave, Cheyenne Public Employees Association (CPEA) President, spoke in favor of the resolution and intent of the resolution. Mr. Brown moved to adopt, seconded by Mr. Valdez. Concerns were expressed that transferring the funds into the general fund at this time may be premature based on the current fiscal year (FY) 2010 budget and upcoming discussion on the FY2011 budget to be held at a Council work session scheduled for April 22. Mr. Brown moved to postpone for two weeks (to April 26, 2010) to allow for discussion to be held involving the resolution at the Council's budget work session, seconded by Mr. Collins. Upon inquiry, City Treasurer Barb Dorr stated, based upon the last analysis of the current budget, it appears revenues and expenditures may balance out for the FY2010 budget but it is not absolutely certain yet whether the funds may be needed for the current fiscal year, noting the funds, or a portion thereof, may be needed to balance next year's budget which currently reflects a \$1.4 million shortfall. Discussion followed and included the following topics: Governing body's fiscal responsibility, postponement of the resolution to allow for information on next year's budget to be received at the work session, intent of the resolution, which is to eliminate possible employee furlough days for the remainder of the current budget year, need to utilize the funding for either the current and/or next fiscal year, and suggested use of City reserves vs. funds from the Solid Waste Management fund. Ms. Dorr clarified the \$400,000.00 will be included in discussion at the Council's budget work session with Mayor Kaysen providing additional information of funding topics that will be discussed at the work session. Discussion continued. Ms. Dorr provided additional information regarding level of revenues being received and, upon inquiry, advised the estimated level of City reserves at the end of FY2010, if revenues and expenditures are even, is \$6.75 million of which \$4.4 million is available for use (less than a 30 day reserve) with the remaining funds being encumbered. Motion to postpone carried. Voting "yes" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Spiker and Mayor Kaysen. Voting "no" – Ms. Ash, Mr. Pierson, Dr. Rinne and Mr. Valdez.

"A Resolution amending Resolution No. 2852 establishing a payment schedule for Stage II of the Cheyenne Water Project." Ed Strader spoke in favor of the resolution which would temporarily suspend the City's annual payment to the Board of Public Utilities (BOPU). Eric Hardgrave, CPEA President, spoke in favor of the resolution explaining suspension of the payment will help save employee jobs. Mr. Brown moved to adopt, seconded by Mr. Valdez. Comments followed on the upcoming Council work session to discuss the FY2011 budget. Mr. Brown moved to postpone for two weeks (to April 26, 2010), seconded by Mr. Collins. Mr. Hardgrave stated the resolution, relative to the \$1.4 million shortfall as previously identified by the City Treasurer for next year's budget, is a key component in balancing the budget. Comments followed on the governing body's fiscal responsibility, public perception on deferring the City's annual payment to the BOPU and indebtedness to future Council members, postponement to allow for information to be received during the upcoming budget work session, and informal comments being made that are

causing fear to employees relative to financial circumstances if the City does make the annual payment. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Ms. Ash voting “no”.

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Building the East Pershing Boulevard Reconstruction Project.” Motion (per Consent Agenda) carried. (#5200)

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Purchasing a Fire Engine for Station #3.” Motion (per Consent Agenda) carried. (#5201)

“A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of Rehabilitating Westland Road.” Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, which clarifies the City’s grant match amount, seconded by Mr. Pierson. Upon inquiry, Cindy Schneider, Grants Manager, advised the original cost estimate was refined, resulting in a higher revised estimate which affected the City’s match. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5202)

“A Resolution prioritizing the City of Cheyenne's three grant applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) Funds.” Mr. Brown moved to adopt, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, seconded by Mr. Collins. Upon inquiry, Cindy Schneider, Grants Manager, clarified the substitute provides for a clerical correction. Motion to amend carried. Voting “yes” – all members of the governing body present. Upon inquiry regarding inclusion of Snyder Avenue as one of the application projects, Ms. Schneider advised due to the timeliness of the upcoming grant application deadline, inclusion of that project could not be achieved by the deadline. Comment was made that perhaps the Snyder Avenue project could be considered for future applications. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5203)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for BOPU Subdivision, a replat of Block 149, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Snyder Avenue and W. 24th Street)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution acknowledging receipt of and approving the “West Allison Road Corridor Study” prepared by Western Research and Development, Ltd., for the Cheyenne Metropolitan Planning Organization” -- referred to Public Services Committee (sponsors - Ms. Case and Mr. Valdez).

[CA] “A Resolution certifying that the Governing Body of the City of Cheyenne is in agreement with the Laramie County Board of Commissioners as to the current Countywide Consensus Block Grant application to the State Loan and Investment Board” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] Preliminary Plat for Woodhaven Subdivision, a replat of Lots 1 & 2, Block 1, Farson Addition and Lots 1 through 14 inclusive of Dry Creek Twin Homes Subdivision, Cheyenne, Wyoming (located east of and adjacent to Wills Road, south of the Dry Creek Channel and Parkview Drive) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Josh Cossitt, to provide tennis services and instruction for the 2010 season. Motion (per Consent Agenda) carried (revenue to City in amount of \$500). (#5529)

[CA] Agreement between the City of Cheyenne and Patrick Swafford, to provide tennis services and instruction for the 2010 season. Motion (per Consent Agenda) carried (revenue to City in amount of \$100). (#5530)

[CA] Contract between the City of Cheyenne and Sanborn Map Co., Inc., Colorado Springs, CO for High Resolution Aerial Photography. Motion (per Consent Agenda) carried. (#5531)

[CA] Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, to provide public transportation services to Laramie County Community College, the City/County Health Department, and an area of Laramie County adjacent to the City -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and United States of America for limited hunting within the boundaries of the Central Great Plains Field Station -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc. to authorize the use of the parking lot leased from the United States Department of the Air Force, located on F.E. Warren Air Force Base, for transportation services during the 2010 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 to provide transportation services during the 2010 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc. to authorize the use of buses leased to the City by Laramie County School District No. 1 to provide transportation services during the 2010 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Agreement between Laramie County, Wyoming, and the City of Cheyenne to provide methamphetamine prevention and education program services. (American Recovery & Reinvestment Act, Edward Byrne Memorial Justice Assistance Grant) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No.1 to provide transportation services for Summer Recreation Camp -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Parks & Recreation

Department, and Kone, Inc. for complete design and build of an Americans with Disabilities Act compliant elevator at Taco John's Ice & Event Center (State Loan & Investment Board) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5220 between the City of Cheyenne Sanitation Department and Tatooine Electronic Systems for the recycling of electronic waste -- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5052 between the City of Cheyenne Sanitation Department and Wyoming Salvage for removal of all appliances, metals and steel from the City Landfill -- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5056 between the City of Cheyenne Sanitation Department and Magic City Enterprises for sorting, processing, and marketing of recyclable materials -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract between the City of Cheyenne and The Sanborn Map Company, Inc., Colorado Springs, CO, for High Resolution Aerial Photography -- referred to Finance Committee.

[CA] Contract Modification #2 to Contract #5477 between the City of Cheyenne and Recco, Inc., d/b/a Five-R Company for Tyvek house wrap & reconfiguration of the retaining wall at the Transfer Station (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5468 between the City of Cheyenne and Reiman Corp. to place existing traffic signal interconnect lines underground for the Carey Avenue & Pioneer Avenue Rehabilitation Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

Consideration of Bid #M-14-10 for a contract between the City of Cheyenne and Naranjo Civil Constructors, Inc., of Greeley, CO for the 17th Street Parking Lot Project (State Loan and Investment Board). Mr. Brown moved to approve in an amount not to exceed \$97,017.00, seconded by Mr. Valdez. Mr. Spiker declared a conflict of interest (owner of business property located in the vicinity) and vacated Council Chambers. Upon inquiry regarding possible use of a portion of the lot during construction, Bob Bradshaw, Special Projects Director, explained the contract is for a 30 day construction window and if any of the lot was left open for use during construction the project could risk being delayed and it is planned to have the lot completed by the Cheyenne Frontier Days celebration. He stated notification through the Downtown Development Authority and the City will be made to those individuals who utilize the parking lot advising of alternate parking areas during construction. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#5532)

[CA] Consideration of Bid #M-16-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for the FY 2010 Concrete Overlay Project for Street and Alley Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-17-10 for a contract between the City of Cheyenne and S&S Builders, LLC, for FY 2010 Intersection Repair Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-18-10 for a contract between the City of Cheyenne and Don Kehn Construction, Inc., Ft. Collins, CO, for FY 2010 Inlet Repair Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-19-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for annual contract for furnishing aggregates for the Street and Alley Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-20-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River, for annual contract for hot plant mix, asphalt tack oil and cold mix for Street and Alley Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-10 between the City of Cheyenne and Rehrig Pacific Co., Los Angeles, CA, for furnishing and delivering 10,000 automated refuse carts for the Sanitation Department -- referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Maria Ramos d/b/a El Charrito Mexican Grill, 216 E. 17th Street, Cheyenne, WY. Motion (per Consent Agenda) carried.

Announcement was made of a Public Hearing to be held in City Council Chambers, 2101 O'Neil Avenue, on April 26, 2010 at 6:00 p.m. for the City of Cheyenne Comprehensive Consolidated Plan for 2010-2014 and the Annual Action Plan for Fiscal Year 2010-2011 for the City of Cheyenne Community Development Block Grant (CDBG) entitlement.

Announcement was made of the appointment of Edward F. Murray, III to the Cheyenne Downtown Development Authority Board, to be confirmed April 26, 2010.

Announcement was made of the reappointment of John Parks to the International Fire Code Board of Appeals and Mona Pearl to the Cheyenne-Laramie County Economic Development Joint Powers Board, to be confirmed April 26, 2010.

Under other business, Mr. Collins congratulated Ms. Ash for recently acquiring her masters degree in Public Administration from the University of Wyoming.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:43 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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